

Court No. - 39

Case :- WRIT - C No. - 48456 of 2014

Petitioner :- Rakesh Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Saurabh Srivastava

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard Sri Saurabh Srivastava, learned counsel for the petitioner and Dr. S.K. Yadav, who has accepted notice on behalf of the respondent no.2, 3 & 4.

The petitioner has approached this Court challenging the demand notice dated 21.7.2014 issued under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, requiring him to pay a sum of Rs.36,630/-

From the pleadings, it appears that a surprise raid and checking was carried out at the premises of the petitioner, wherein he was found committing theft of electricity by connecting the cable bypassing the meter. It is undisputed that he paid a compounding charge of Rs.10,000/- for compounding the offence. Subsequently, a provisional assessment was made, against which no objection was filed and the same was treated to be a final assessment and the demand notice under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, was issued.

Dr. S.K. Yadav on the basis of the instructions, copy whereof is taken on record, states that though the provisional assessment order dated 26.5.2014 was sent to the petitioner through speed post but it came back unserved with endorsement that his residence is locked. This fact also finds place in the covering letter sent to the petitioner along with demand notice issued under Section 3 of the Act. It is, thus, clear that copy of the provisional assessment order was not served upon the petitioner and thus, he was deprived of filing of an objection thereto.

This Court in *Ashok Kumar and others Vs. State of U.P. and others [2008 (6) ADJ 660 (DB)]* from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In view of the aforesaid provisions, the writ petition is allowed and the impugned demand notice 21.7.2014 issued under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, is hereby quashed. The respondents are directed to issue a fresh provisional assessment order and serve it upon the petitioner, giving fifteen days' time to file objection thereto and fixing a date for his appearance in hearing and thereafter proceeded to pass final assessment order giving reasons after taking into account petitioner's objection, if any made, in light of the observations made in Ashok Kumar (Supra).

Order Date :- 10.9.2014

Ashok Kr.